

THE UNIVERSAL HOUSE OF JUSTICE

1975-07-24

To an individual Bahá'í

Dear Bahá'í Friend,

166.1 Your letter of 16 March 1975 has been received and we have studied the various questions arising from your study of the Synopsis and Codification of the Kitáb-i-Aqdas

166.2 Concerning your questions about the equality of men and women, this, as 'Abdu'l-Bahá has often explained, is a fundamental principle of Bahá'u'lláh; therefore the Laws of the Aqdas should be studied in the light of it. Equality between men and women does not, indeed physiologically it cannot, mean identity of functions. In some things women excel men, for others men are better fitted than women, while in very many things the difference of sex is of no effect at all. The differences of function are most apparent in family life. The capacity for motherhood has many far-reaching implications which are recognized in Bahá'í Law. For example, when it is not possible to educate all one's children, daughters receive preference over sons, as mothers are the first educators of the next generation. Again, for physiological reasons, women are granted certain exemptions from fasting that are not applicable to men. 166.3 You mention the provision in the Kitáb-i-Aqdas regarding inheritance, in which the eldest son receives preferential treatment. As you no doubt know, the duty of making a will is enjoined upon all Bahá'ís, and in such a will a believer is free to bequeath his or her property in whatever way he or she wishes (see note 25 on page 60 of the Synopsis and Codification). Every system of law, however, needs to make provision for the disposal of a person's property if he or she dies without having made a will, and it is in cases of intestacy that the specific provisions stated in the Kitáb-i-Aqdas are applied. These provisions give expression to the law of primogeniture, which, 247as 'Abdu'l-Bahá has stated, has invariably been upheld by the Law of God. In a Tablet to a follower of the Faith in Persia He wrote: "In all the Divine Dispensations the eldest son hath been given extraordinary distinctions. Even the station of prophethood hath been his birthright." With the distinctions given to the eldest son, however, go concomitant duties. For example, with respect to the law of inheritance 'Abdu'l-Bahá has explained in one of His Tablets that the eldest son has the responsibility to take into consideration the needs of the other heirs. Similar considerations no doubt apply to the provisions that, in intestacy, limit the shares due to half- brothers and half-sisters of the deceased on his or her mother's side; they will, of course, be due to receive inheritance from their own father's estate.

166.4 Your statement that "Gifts to a wife are included in the man's property to be given away after his death" is incorrect. It is clear from the passage in the Kitáb-i-Aqdas that certain things that a husband buys for his wife are intended to be for the general household and certain are intended to be the wife's personal property. These latter, that is to say the wife's used clothing and gifts which have been made to her, are not included in the husband's property.

166.5 The husband's duty to send his wife home if differences arise between them while traveling is a part of the law of divorce, and relates to the husband's obligation to support his wife during the year of waiting. The Synopsis and Codification of the Kitáb-i-Aqdas reads as follows (at section (g) on pages 42 and 43):

166.5a Should differences arise between husband and wife while traveling, he is required to send her home, or entrust her to a dependable person, who will escort her there, paying her journey and her full year's expenses.

166.6 You have also asked for an explanation of why, in view of the Bahá'í principle of equality of

[signed: The Universal House of Justice]